

CASE SUMMARY

State v. Geeta

Ct. Case No. 257/2023 | CNR DLSW01-002468-2023 | Court of the Additional Sessions Judge (Electricity), South-West District, Dwarka Courts, Delhi

COURT	Court of the Additional Sessions Judge (Electricity), South-West District, Dwarka Courts, Delhi
JUDGE	Ms. Harleen Singh, Addl. Sessions Judge (Electricity)
DATE OF JUDGMENT	date of judgment (date of inspection / offence: date of inspection)
PARTIES	State (BSES Rajdhani Power Ltd.) v. Geeta W/o Jeet Singh (user) — the registered consumer (Om Parkash) having died during proceedings
STATUTES INVOKED	Section 135 (and third proviso to s. 135(1)), Electricity Act, 2003; Sections 101, 106 & 65B, Indian Evidence Act, 1872; Sections 251 & 313, Cr.P.C.
RESULT	Acquitted — complaint dismissed. The inspection described a first floor that does not exist, the seizure account was found ‘absurd’, and the accused could not even be identified. The accused stands acquitted of the charge under Section 135 read with Section 150 of the Electricity Act, 2003.

CHARGE BEFORE THE COURT

Whether the accused Geeta dishonestly abstracted electricity at the inspected premises (described as “FF”/first floor), so as to attract Section 135 read with Section 150 of the Electricity Act, 2003; and whether the prosecution proved that abstraction where the very description of the premises was false.

FACTS

BSES Rajdhani alleged an illegal tap (assessed at about Rs. 92,989) at premises described in the complaint and documents as the first floor (“FF”). The accused proved that the premises were built only to the ground floor — there was no first floor — and that she had resided at the ground floor for some twenty years, a fact left unrefuted. PW-1’s account that the accused snatched and hid the illegal wire while the door was closed was found by the Court to be “absurd, to say the least.” The cable was described inconsistently (“AB cable” by PW-1, “service cable” by PW-3); PW-3 could not identify the accused; the material technician (Sunil Kumar) was not examined; no photograph of the alleged cut in the cable was placed on record; and no material was seized despite police presence.

On a complaint under Section 135 r/w 150, the accused pleaded not guilty; the proceedings against the registered consumer (Om Parkash) abated on his death. Under Section 313 Cr.P.C. the accused denied the allegations.

REASONING OF THE COURT

HEADNOTE

An inspection that locates the theft on a first floor which does not exist, an account of the seizure the Court itself called “absurd,” inconsistent descriptions of the cable, a witness who could not identify the accused, and no seized material or photograph leave nothing on which a Section 135 conviction could rest; the accused is acquitted and the case against the deceased consumer abates.

The presumption arises only after the prosecution proves the foundational facts. The Court proceeded from first principles: the third proviso to Section 135(1) is a reverse-onus clause that operates only once the prosecution has proved, beyond reasonable doubt, both an unauthorised abstraction of electricity and the identity of the accused as its author or the consumer of the premises. Until that foundation is laid the ordinary burden rests on the prosecution, and where two views are reasonably possible the one favouring the accused must be preferred.

The premises were misdescribed — no first floor exists. The complaint and documents placed the theft on the first floor, but the accused proved the building rose only to the ground floor, where she had lived unrefuted for some twenty years; the abstraction was located at a place that does not exist.

The seizure narrative was ‘absurd’ and identity failed. The Court found PW-1’s account — that the accused snatched and hid the wire while the door was closed — “absurd, to say the least”; PW-3 could not identify the accused and described the cable differently from PW-1, so neither the act nor its author was reliably proved.

No material, no photograph, no technician. Despite police presence nothing was seized, no photograph of the alleged cut cable was filed, and the technician who could speak to the wiring was not examined — the physical proof of the tap was wholly absent.

The cumulative doubt entitled the accused to acquittal. With a theft located on a non-existent first floor, a seizure account the Court called absurd, a failure to identify the accused, and no seized material, photograph or technician, the foundational facts were not established to the standard the law requires. The statutory presumption never arose, the benefit of the doubt went to the accused, and the charge under Section 135 read with Section 150 of the Electricity Act, 2003 was not brought home.

INTERPRETATION OF THE ELECTRICITY STATUTES

ELECTRICITY ACT, 2003

Section 135(1) — Theft of Electricity: the Foundational Facts

The Court read Section 135(1) as requiring the prosecution first to prove, beyond reasonable doubt, the foundational facts — an unauthorised or artificial abstraction of electricity *and* the identity of the accused as its author or as the consumer/user of the inspected premises. Only upon proof of those facts does the offence, or the abetment of it, arise; a bare allegation, or mere presence at or near the spot, is not enough. As the Act does not define “dishonestly,” Section 24 IPC is imported, but dishonest intention presupposes an abstraction first fixed on the accused.

Third Proviso to Section 135(1) — When the Presumption Does Not Arise

The reverse-onus presumption of dishonest use operates only after the prosecution has established the artificial means of abstraction and connected it to the accused. Where that foundation fails — the inspection is self-contradictory, the user’s identity is not fixed, material witnesses are withheld, the electronic record is not duly certified under Section

65B, or the officer's authority to complain is not proved — the presumption never arises. The ordinary rule then governs: the prosecution must prove guilt beyond reasonable doubt, and where two views are reasonably possible the one favouring the accused is adopted.

HELD

The prosecution having failed to prove the foundational facts — a theft located on a non-existent first floor, a seizure account the Court called absurd, a failure to identify the accused, and no seized material, photograph or technician — the charge under Section 135 read with Section 150 of the Electricity Act, 2003 was not established beyond reasonable doubt. **The accused is accordingly acquitted, and the complaint is dismissed.**

SIGNIFICANCE

An acquittal where the theft was placed on a floor that does not exist. Four propositions stand out:

- **A false description of the premises is corrosive to the whole case.** If the theft is placed where no such floor exists, the inspection cannot be trusted on anything else.
- **An 'absurd' seizure account cannot prove the act.** Testimony the Court itself disbelieves as absurd carries no weight.
- **Failure to identify the accused is decisive.** A witness who cannot identify the accused cannot fix the abstraction on her.
- **No seizure and no photograph leave the tap unproved.** Physical proof, readily available with police present, was simply not gathered.

CITATIONS

The decision turned wholly on the evidence; neither side pressed any case authority, and the Court decided the matter on the record before it.

This summary is a condensed digest prepared for quick reference. It is not a substitute for the full text of the judgment and should not be relied upon for legal advice without verification against the original.